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Final Report

Sec. 173 CrPC:

1. Investigation shall be completed without unnecessary delay.
2. (i) As soon as it is completed, the officer in charge of the police station shall forward to a Magistrate empowered to take cognizance of the offence on a police report, a report in the form prescribed by the State Government, stating—
   a) the names of the parties;
   b) the nature of the information;
   c) the names of the persons who appear to be acquainted with the circumstances of the case;
   d) whether any offence appears to have been committed and, if so, by whom;
   e) whether the accused has been arrested;
   f) whether he has been released on his bond and, if so, whether with or without sureties;
   g) whether he has been forwarded in custody under section 170;

   ii) The officer shall also communicate, in such manner as may be prescribed by the State Government, the action taken by him, to the person, if any, by whom the information relating to the commission of the offence was first given.
3. Where a superior officer of police has been appointed under section 158, the report shall, in any case in which the State Government by general or special order so directs, be submitted through that officer, and he may, pending the orders of the Magistrate, direct the officer in charge of the police station to make further investigation.
4. Whenever it appears from a report forwarded under this section that the accused has been released on his bond, the Magistrate shall make such order for the discharge of such bond or otherwise as he thinks fit.
5. When such report is in respect of a case to which section 170 applies, the police officer shall forward to the Magistrate along with the report—
   a) all documents or relevant extracts thereof on which the prosecution proposes to rely other than those already sent to the Magistrate during investigation;
   b) the statements recorded under section 161 of all the persons whom the prosecution proposes to examine as its witnesses.
6. If the police officer is of the opinion that any part of any such statement is not relevant to the subject-matter of the proceedings or that its disclosure to the accused is not essential in the interests of justice and is inexpedient in the public interest, he shall indicate that part of the statement and append a note requesting the Magistrate to exclude that part from the copies to be granted to the accused and stating his reasons for making such request.
7. Where the police officer investigating the case finds it convenient so to do, he may furnish to the accused, copies of all or any of the documents referred to in sub-section (5).
8. Nothing in this section shall be deemed to preclude further investigation in respect of an offence after a report under sub-section (2) has been forwarded to the Magistrate and, where upon such investigation, the officer in charge of the police station obtains further evidence, oral or documentary, he shall forward to the Magistrate a further report or reports regarding such evidence in the form prescribed; and the provisions of sub-sections (2) to (6) shall, as far as may be, apply in relation to such report or reports as

they apply in relation to a report forwarded under sub-section (2).

PSO- 658: Final Reports:

- The Final Report (Form No.89) is the report prescribed by Section 173 of the CrPC. to be sent to the Magistrate having jurisdiction. This Form will be used both for referring cases as false and reporting them as undetectable.

PSO- 659: Reporting on false cases- Instructions:

- Cases must not be reported as false unless clearly so. Mere probability will not suffice. Delay in referring cases as false must be particularly avoided and cases, in which there has been serious delay, must be returned as undetectable, unless fresh facts are elicited demonstrating them to be false.

PSO- 660: Notice to complainants:

- In cases disposed of u/s 173 and 157 (1) (b) Cr. P.C., including the cases charged , the Police have to serve a Notice in Form No.90 (Referred and Charge Sheet Notice) on the complainant or the informant and forward the duplicate duly endorsed with the Final Report to the Magistrate concerned. Where the complainant or the informant is indirectly concerned with a case, this RCS Notice may be served on the next or very close relative of the deceased if known and if not known, pasted on the Police Station Notice Board for a period of 30 days. In case in which investigation is refused, the duplicate Notice will be attached to the First Information Report sent to the Court.

PSO-661: Final Reports to be sent through Circle Inspector

- Final Reports have to be sent through the Circle Inspector, who is bound to forward them to the Magistrate without delay, noting upon them any orders issued to the SHO and any remarks that he may have to offer. The Inspector may order the SHO to make further inquiry or do so himself. In respect of the single Station Circles, the Final Reports may be sent to the Magistrate direct by the Inspectors concerned.

PSO-668: Orders of Magistrate on Final Reports

- The Final Report to the Magistrate, u/s 173 CrPC, that a case is false may justify an order for further investigation as the Section itself indicates, but it is not open to the Magistrate to direct the Police to charge the case against their own report that the case is false. The Magistrate has powers to take action himself u/s 190 Cr.PC, if he is not satisfied with the report of the Police that the case is false.

PSO-669: Withdrawal of the Cases

- Government consider it desirable that, in all grave cases in Magisterial Courts the DDP or ADP should consult the District Collector before withdrawing from the prosecution of an accused.
- In cases where the S.P directs the withdrawal, the Prosecuting Counsel should be instructed to move the Court for withdrawal u/s 321 CrPC.

Preparation of Final Reports/ Charge Sheets

Charge Sheet : Charge sheet is a very important document and court has to take cognizance upon this report u/s 190(1) CrPC. It has to be drafted with good handwriting and it has to be submitted to the court after the I.O. is satisfied that the offence is committed by the accused charged and there is sufficient evidence on record to forward the accused for facing the trial before a court of law. If the I.O. is not the officer, he should give his report u/s 168 CrPC. to the officer in charge who should submit a report u/s 173 CrPC. Brief facts to the case (memo of evidence) have to be submitted. It is an important document to help the prosecutor and court. It contains the following particulars:

1. Brief facts of the case.
2. Offences committed.

3. Names of accused.
4. Evidence against each of them.
5. Material or documentary evidence to be proved. Circumstantial evidences, if any, with its significance and impact on other cases.

Documents to be attached with charge sheet/ challan

1. Report under section 173 CrPC. (Challan form)
2. Copy of FIR or original complaint or statement on which FIR was recorded.
3. Site plan.
4. Seizure memos, recovery memos or search memos (personal and house) and sketches of weapons etc.
5. Injury statements and MLC (medical legal certificate) of all prosecution witnesses and accused (if sustained injuries).
6. Reports of the experts.
7. Identification memo (if any) .
8. Statements recorded under section 164 CrPC. (if any).
9. Confession statement of accused (if any).
10. List of stolen property (if submitted after registration of the FIR and during the course of investigation).
11. Disclosure statements of accused recorded under section 27 evidence act.
12. Any document which is to be proved in the court.
13. Identification certificates of the accused.
14. Search slip of the accused.
15. Judicial certificate of previous conviction where section 75 IPC is in operation.
16. Other documents which prosecution is relying upon.
17. Conviction slip.
18. Road certificate.
19. Inquest reports viz 174, 176 CrPC.

A police officer, on completion of investigation, submits a final report to the court. This report can be either in the form of a **charge sheet or a referred report**. The final report is governed by sec. 173 CrPC.

Copies to the accused: If the police officer is of the opinion that any part of any such statement is not relevant to the subject matter of the proceedings or that its disclosure to the accused is not essential in the interests of justice and is inexpedient in the public interest, he shall indicate that part of the statement and append a note requesting the magistrate to exclude that part from parties to be granted to the accused and stating his reasons for making such request, where the police officer investigating that case finds it convenient so to do he may furnish to the accused copies of all or any of the documents referred to in sub-section.

Supplementary charge sheet: Nothing in this section shall be deemed to preclude further investigation in respect of an offence after a report under sub-section (2) has been forwarded to the magistrate and, where upon such investigating, the officer-in-charge of the police station obtains further evidence, oral or documentary, he shall forward to the magistrate a further report or reports regarding such evidence, in the form prescribed; and the provisions of sub-section (2) to (6) shall, as far as may be, apply in relation to such report or reports as they apply in relation to a report forwarded under sub-section (2).

- From the above, it is clear that further investigation can be made and supplementary charge sheet can be filed only when there is fresh evidence which is not available at the time of filing the original charge sheet.
- Amendment of a charge sheet if different from supplementary charge sheet. A revised or amended charge sheet on the basis of the same facts and same material to set right certain mistakes or omissions in the first report can be filed even if there is no fresh investigation.
- When an expert opinion is awaited a supplementary charge sheet cannot be filed to include the report of the expert. Such charge sheet shall be termed as charge sheet on incomplete investigation. Supplementary charge sheet is not contemplated for such continuation.

Sec.468 CrPC: Bar to take cognizance after lapse of the period of limitation:

According to this section, when the charge sheet is filed, the court is bound to consider the question of limitation. In this case the court has to see as to whether or not it is competent to take cognizance and whether or not the charge sheet has been filed within a period of limitation prescribed by sec.468 CrPC which states that no court shall take cognizance of an offence of the category specified in sub-section (2) after the expiry of the period of limitation. Sub-section (2): The period of limitation shall be

a) Six months, if the offences is punishable with fine only;
b) One year, if the offence is punishable with imprisonment for a term not exceeding one year;
c) Three years, if the offence is punishable with imprisonment not exceeding three years.

Sec.473 CrPC: Extension of portion of limitation in certain cases:

- According to this section, the prosecution can explain the grounds for the delay in the charge sheet itself; if the court is satisfied that there are sufficient and justifiable grounds for condoning the delay for the extension of period of limitation.
- Prosecution can file an application accompanied by an affidavit or documents in support of the same. Sections 469 to 472 CrPC. deal with the commencement of limitation. (Exclusion of time in certain cases, exclusion of date on which court is closed and date of limitation for a continuing offence, etc.,).

Section 195, 196, 197 and 198 CrPC: sanction for prosecution:

These sections mention the case in which the court shall not take cognizance without the sanction of, or complaint by, some competent authority. In such cases, it should be seen that the required sanction is obtained when the investigation is completed and the original sanction attached to the charge sheet when laid in court. Under the following cases, the sanction of the competent authority is necessary.

i. Offences punishable, or abetment or attempt to commit or the abetment of, any offence, specified in item no.2.
ii. Offences punishable u/s 193 to 196, 200, 205 to 211 and 228 IPC.
iii. Any criminal conspiracy to commit, or attempt to commit or the abetment of, any offence, specified in item no.2.
iv. Any offence punishable under chapter vi of IPC u/s 153A, 295A or sub section (1) of 505 IPC or a criminal conspiracy to commit such offence or abetment as described u/s 108A IPC including 120B IPC.
v. To prosecute a judge or magistrate or public servant not removable from office save by or with the sanction of the government, is accused of any offence alleged to have been committed by him while acting or purported to act in the discharge of his official duty. An employee of the union or the state Govt when he is employed in connection with its affairs, or any members of armed forces in the discharge of his official duty.
vi. To prosecute a commissioner or receiver appointed by the civil court.
vii. For prosecution of offences against marriage, viz, offences punishable u/s 494 or and 276(1) IPC.

- In India it is said poverty leads to crime but poverty is only a minor cause of crimes in this country. The real causes are still to be found in old and fundamental faults of human nature i.e. greed, anger, jealously, vanity and lust. But a police officer is concerned more with the requirement of substantive and procedural law and not with philosophy thereof though according to Indian Penal Code (see sec.20), our courts are —Courts of Law.
- In fact the word court is not defined either in Indian Penal Code or in the Code of Criminal Procedure but it is defined in Sec .3 of IEA where court includes all judges and magistrates and all persons except arbitrators legally authorized to take evidence.

But it may be pointed out here that every magistrate is not a court unless he is legally authorized to take evidence according to evidence act.

- It is thus before the judges and magistrate acting judicially that a police officer has to place the offender for justice or to be dealt with according to law. Several irregularities committed by police officers during the course of investigation, enquiry and trial go unnoticed and even those noticed go uncorrected as a matter of habit or negligence. A brief review of some of the correct procedures will be of help in avoiding such errors.

Tendering statements during examination-in-chief and cross- examination

- Police officers have to tender evidence in courts in criminal and civil cases. In criminal cases they have to depose regarding the investigations conducted by them.
- In civil cases the parties involved request the courts to summon police officers who are acquainted with the particulars of the dispute or suit. In criminal cases where the charge sheet is filed by police officer, it shall be their duty to prove the charge against the accused.
- Sec.101 of the Indian Evidence Act enumerates that —whoever desire, any court to give judgment as to any legal right or liability dependent on the existence of facts which he assert, must prove that those facts exist. When any person is bound to prove the existence of any fact, it is said that the burden of proof lies on that person.
- The prosecutor leads the evidence in the court. It is the prerogative of the prosecutor to examine the witnesses in the order he chooses. Some years back, prosecutions opened with the statement of the investigation officer.
- The presiding magistrate or judge was in a position to be familiar with the entire case and the evidence gathered by the investigating officer in the case. After the I.O's statement was recorded, he could sit in the court and guide the prosecutor.
- The witnesses would not normally turn hostile in the presence of the police officer. In the present system, the investigating officer is examined at the end after the evidence of all the witnesses is recorded.
- This procedure gives the investigating officer to furnish the missing links and give a satisfactory explanation to the court. There are advantages and disadvantages in both the procedures.

Instructions to guide the police officers in making their depositions in court:- How to give evidence in court

a) Always appear in uniform when giving evidence in court.
b) Always salute the court, both when entering and leaving the witness box.
c) Be attentive, never fidget.
d) Be clam and dignified while giving evidence, so as to impress the court and the counsel favourably.
e) When questioned by the adverse party, never turn towards the prosecution counsel.
f) Answer no question without understanding it. If the question is not clear enough to be understood, say so and politely ask the counsel to repeat it in a simpler form.
g) Do not answer a question with a counter question.
h) If you do not remember any fact, say so at once rather than attempt a random answer.
i) Never show irritation and do not be offended if the cross examiner questions you in a way you do not like.
j) If questions are unnecessarily vexatious or obnoxious, represent the matter to the court and seek its protection. Above all do not quarrel with the counsel.
k) Carefully distinguish between what you know personally and what you may have heard from others.
l) In answering a question, do not give unnecessary information e.g. if asked whether the colour of a certain article is white, do not say —no it is black. Say simply —no or yes.

m) If you consider that some of your answers require an explanation which the counsel failed to elicit, you may, when both sides have finished, represent the matter to the court.

n) Remember that all that the court wants to ascertain is the guilt or innocence of the accused, and not your intelligence.

o) Give no more details regarding the source of your information than —from information received, i did this or that.

p) Avoid lengthy answers, as they furnish more material for cross examination. Your replies should be concise.

q) Do not leave the court without its permission.

- Before giving evidence in court, the investigating officer must study the case diaries, statements recorded u/s 161 CrPC., confessions, seizure reports, remand diaries/ reports and the charge sheet.
- The investigating officer, if he has full knowledge of the case, investigation and the statements recorded by him can depose with all confidence and withstand cross examination.
- He can provide a satisfactory explanation to the court only if he has kept himself aware of the proceedings, the statements of witnesses, the answers given by them during the cross examination in his own hand and show it to the prosecutor and take note of any suggestions made by the prosecutor.
- After entering the witness box and taking oath, the officer should commence his statement with the receipt of the complaint, registration of the case and narrate direct and indirect evidence recorded, arrest made, confessions recorded, seizures made, identification parades if held, confessional statements recorded by magistrate etc., and finally the filing of the charge sheet.
- The statement should be organized chronologically. An officer who has partly investigated a case in the initial stages should speak about the registration of the case, the steps taken by him in the investigation and in handing it over to his successor or superior.
- A police officer who has arrested the offenders, recorded the confessions and seized properties should speak about the requisition or instructions received from the investigating officer and the part played by him.
- A police officer who has done only a part of the job should not speak about the investigation done by other police officers. If a case was partly investigated by one officer and the charge sheet filed by another officer, the latter should depose briefly about the registration of the case, the investigation done by the former and in detail, the part played by him, including his conclusions on filing the charge sheet.

Briefing of prosecution witness before examination

After filing of charge sheet there is long interval till calling of witnesses for examination. Due to human nature memory fades away and it is necessary to refresh the memory. In prosecution of criminal case I.O. must take care of this aspect and is under obligation to brief the witness in advance.

1) After filing of charge sheet in court it is the duty of police officer to prove the charge against the accused. As per sec 101 of evidence act it is duty of police officer assisted by APP to prove the existence of fact and burden of proof lies upon them.

2) Police officer should assist the prosecution in briefing the witness as he is aware of all the details of the case.

3) In heinous cases I.O. should contact the eye witness in advance and explain him all the details systematically.

4) Court will take care of witnesses in court. Court will also brief the witness and assist him for conducting of smooth examination. Court will also ensure that witness attending court are not harassed and feel discouraged.

5) Eye witnesses must be told the exact date, time & place of the occurrence.
6) Names and number of other witnesses present on the spot.
7) Source of light to prove the identification of accused.
8) Contents of FIR in all the cases- site plan be shown.
9) Role of each and every accused if more than one involved.
10) Role of each witness.
11) Place where seizure memo is prepared and time of writing it.
12) Handing over of seal to witness.
13) How accused appeared on the scene including their physical description and dresses.
14) Articles or weapons taken into possession by police.
15) Position of witness at the time of occurrence.
16) General details about happening of incident and identification of article in theft cases.

Points for consideration:

- Try to generate confidence if witness is feeling nervous.
- To answer a question in calm and patient manner.
- To avoid lengthy question/ answer and tell him to request for short question.
- To answer all the questions carefully and avoid unnecessary information.